

No. 03-17-00812

**In the Court of Appeals
for the Third Judicial District
Austin, Texas**

FILED IN
3rd COURT OF APPEALS
AUSTIN, TEXAS
2/6/2018 2:54:03 PM
JEFFREY D. KYLE
Clerk

AHMAD ZAATARI, MARWA ZAATARI, JENNIFER GIBSON HERBERT,
JOSEPH “MIKE” HERBERT, LINDSAY REDWINE,
RAS REDWINE VI, AND TIM KLITCH,

Plaintiffs-Appellants / Cross-Appellees,

and

THE STATE OF TEXAS,

Intervenor Cross-Appellant,

v.

CITY OF AUSTIN, TEXAS AND STEVE ADLER,
MAYOR OF THE CITY OF AUSTIN,

Defendants-Appellees / Cross-Appellants.

On Appeal from the
53rd Judicial District Court, Travis County

**FIRST JOINT MOTION TO EXTEND TIME TO FILE
APPELLANTS', INTERVENOR CROSS-APPELLANT'S,
AND CROSS-APPELLANTS' OPENING BRIEFS**

TO THE HONORABLE THIRD COURT OF APPEALS:

1. As currently scheduled, each set of parties in this appeal must file an opening brief on or before February 20, 2018. This includes:

- The opening brief on appeal for Plaintiffs-Appellants / Cross-Appellees Ahmad Zaatari, Marwa Zaatari, Jennifer Gibson Herbert, Joseph “Mike” Herbert, Lindsay Redwine, Ras Redwine VI, and Tim Klitch (hereinafter, “Private Appellants”);
- The opening brief on cross-appeal for Intervenor Cross-Appellant the State of Texas (hereinafter “the State of Texas”); and
- The opening brief on cross-appeal for Defendants-Appellees / Cross-Appellants City of Austin, Texas and Steve Adler, Mayor of the City of Austin (hereinafter, “the City”).

2. Pursuant to Texas Rules of Appellate Procedure 38.6(d) and 10.5(b), Private Appellants, the State of Texas, and the City seek a 30-day extension of time to file their respective opening briefs, making these briefs due on or before March 22, 2018.

3. The extension is sought to accommodate the State of Texas’ counsel’s workload, the City’s counsel’s workload, and to ensure that the Private Appellants’ briefing schedule remains synchronized with the schedule for the State of Texas and the City.

4. Lead appellate attorney for the State of Texas, Andrew Davis, is new to this matter and is working expeditiously to get up to speed, but has been engaged in other litigation both with recent, *e.g.*, *Mamou v. Davis*, No. 17-70001 (5th Cir.) (brief filed Jan. 22, 2018), *A.R. v. Secretary, Fla. Agency for Health Care Admin.*, No. 17-13595 (11th Cir.) (brief filed Jan. 23, 2018), and imminent, *e.g.* *Abbott v. Perez*, Nos. 17-586, 17-626 (U.S.) (brief due Feb. 26, 2018), filing deadlines. The requested 30-day extension of time is necessary to provide counsel with adequate time to review the record in order to provide the Court with a thorough opening brief on all relevant issues.

5. Lead appellate attorney for the City of Austin, Michael Siegel, is also facing a number of conflicting obligations, including briefing deadlines in *City of Austin v. State of Texas, et al.*, No. 1:17-CV-806-RP (W.D. Tex.) (amended complaint due Feb. 7, 2018) and *Texas, et al., v. Travis County Texas, et al.*, No. 17-50763 (5th Cir.) (brief due Feb. 16, 2018), and necessary preparation and travel for two upcoming CLE presentations (Feb. 9, 2018 at the Texas Municipal League and Feb. 14, 2018 to TexasBarCLE immigration section). The requested 30-day extension of time is necessary to provide counsel with adequate time to review the record in order to provide the Court with a thorough opening brief on all relevant issues.

6. This extension is sought in the interest of justice, not for delay, and no party will be prejudiced if this first request for an extension is granted.

7. All parties agree to the requested extension.

PRAYER

For the foregoing reasons, Plaintiffs-Appellants / Cross-Appellees, Intervenor Cross-Appellant the State of Texas, and Defendants-Appellees / Cross-Appellants jointly request that the Court grant a 30-day extension of time to file their respective opening briefs, making those briefs due on March 22, 2018.

February 6, 2018

Respectfully submitted.

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Texas and Steve Adler, Mayor of the
City of Austin*

CERTIFICATE OF CONFERENCE

I hereby certify that the Private Appellants, the State of Texas, and the City have jointly agreed to seek the relief requested by this motion.

CERTIFICATE OF SERVICE

On February 6, 2018, this document was served electronically on Michael Siegel, lead appellate counsel for Defendants-Appellees / Cross-Appellants, at *Michael.Siegel@austintexas.gov*, and on Robert Henneke, lead appellate counsel for Plaintiffs-Appellants / Cross-Appellees.

/s/ Andrew B. Davis
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